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Case Number: 26VECV01273 Hearing Date: June 24, 2026 Dept: T

26VECV01273 Fernandez v SK Properties

[TENTATIVE] ORDER: Defendant SK Properties LLC's Demurrer to the Complaint is OVERRULED.

Defendant SK Properties LLC's Motion to Strike Portions of the Complaint is GRANTED WITH 20 DAYS LEAVE TO AMEND as to punitive damages.

Defendant SK Properties LLC's Motion to Strike Portions of the Complaint is GRANTED WITHOUT LEAVE TO AMEND as to the claims related to the defective air conditioner alleged in the first and third causes of action and otherwise DENIED.

Defendant SK Properties LLC's Motion to Strike Portions of the Complaint is DENIED as to Prayer paragraphs 7 and 8 and as to the allegations of unabated cockroach infestation.

Defendant SK Properties LLC's Request for Judicial Notice is GRANTED only as to the existence of the documents but not as to the documents contents because the matters are hearsay and facts in dispute.

Introduction

Defendant SK Properties LLC (Defendant) demurred to Plaintiffs Sara Ramos Fernandez and Ariela Fernandez De Ramos' (collectively, Plaintiffs) Complaint. Defendant's demurrer placed into issue the first cause of action (COA) for statutory breach of the warranty of habitability, the second COA for breach of implied warranty of habitability, the third COA for Civil Code section 1942.4 violation, the fourth COA for negligence, the fifth COA for nuisance, the sixth COA for intentional infliction of emotional distress (IIED), the seventh COA for breach of contract, the eighth COA for breach of the covenant of quiet enjoyment, the ninth COA for breach of the covenant of good faith and fair dealing, the tenth COA for Business & Professions Code, section 17200 violation, and the eleventh COA for Civil Code section 789.3(a) violation.

Defendant moved to strike Plaintiff's request for punitive damages; allegations as to air conditioning; specific amounts pled as damages; and false statements.

NOTE: Plaintiff's opposition to the demurrer cited to a non-existent case citation: "Gressley v. Williams (1961) 193 Cal.2d 636, 639". (See pg. 3:15.) Plaintiff's opposition to the motion to strike also cited to a non-existent case citation: "Richardson v. Employers Liability Assur. Corp. (1972) 102 Cal.App.3d 232". (See pg. 3:25-26.) Defendant's Reply did not mention the two citations as being non-existent. However, when doing a search using the case name, the correct citation can be found.

Gressley's correct citation is 193 Cal.App.2d 636. Richardson's correct citation is 25 Cal.App.3d 232. The court will address this with plaintiff's counsel at the hearing.

Procedure

Defendant requested judicial notice of five "Official Inspection Reports" from the Los Angeles County Department of Public Health (DPH). (Request for Judicial Notice (RJN) Exhs. 1-5.) Defendant asserted that the reports are judicially noticeable because they are facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination. (Evid. Code, sec. 452(h).) However, the subsection refers to indisputable facts, which involves "facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like." (Gould v. Maryland Sound Industries, Inc. (1995) 31 Cal.App.4th 1137, 1145.) The contents of the DPH reports are not facts within the sciences and verifiable by treatises, encyclopedias, and almanacs. Further, the contents of the reports are hearsay and contain facts in dispute. Plaintiff expressly alleged that the cockroach infestation remains unabated at the time of the filing of the Complaint. (Compl. par. 67.) Defendant further argued that judicial notice is proper because Plaintiffs' Complaint referenced the reports from the DPH but did not attach the reports. (Salvaty v. Falcon Cable TV (1985) 165 Cal.App.3d 798, 800, fn. 1 (Salvaty).) However, the Salvaty opinion only refers to contracts or agreements. The reports from the DPH are not contracts or agreements, despite Defendant's contention otherwise. Defendant's reliance upon Salvaty case is unpersuasive. The Court disagrees with Defendant's contention that the contents of the DPH reports are judicially noticeable.

Defendant's RJN is GRANTED only as to the existence of the documents but not as to the contents of the documents as they are hearsay and facts in dispute.

NOTE: Defendant's Reply argued that the DPH investigation/reports are "official acts". However, the RJN and the Reply did not cite Evid. Code sec. 452(c) as a basis for judicial notice. Further, the argument is first presented in the Reply which deprived Plaintiff of proper notice and opportunity to be heard. Even if considered, the contents of the DPH reports cannot be judicially noticed because the contents directly dispute the facts alleged in the Complaint.

Discussion

Defendant argued that all COAs failed to plead sufficient facts because Defendant remedied the cockroach infestation by sending a pest control service on multiple occasions (see Compl. pars. 54, 55, 57-59, 61-62, 65-66) and cured all the other alleged defects (i.e., plumbing issues, water leaks, water damage, and dilapidated conditions including a defective air conditioning unit, electrical issues, severely deteriorated kitchen cabinetry, deteriorated flooring, cracks and holes in the walls, and lack of a functioning heater – Compl. par. 19). Defendant's argument that the cockroaches were abated and the defects were cured relies upon the above cited allegations in the Complaint and RJN Exhibits 1-5. However, Defendant's reliance upon these allegations and the RJN to argue that the cockroach infestation to be abated is unfounded because the allegations are only a very narrow reading of the allegations in the Complaint and the Court cannot take judicial notice of the contents of the RJN documents. The argument also ignores Plaintiff's express allegation that the cockroach infestation remained unabated at the time of filing the instant action. (Compl. par. 67.) At the demurrer stage, all fact allegations are deemed true. Defendant's arguments improperly dispute the veracity of the fact allegations. Defendant's argument is unpersuasive because it is unsupported by a complete reading of all the fact allegations in the Complaint and the argument disputes the veracity of the fact allegations.

Defendant further disputed Plaintiff's allegations of uninhabitability based upon plumbing issues, electrical issues, deteriorated cabinetry, flooring, walls, and defective heater. Defendant again asserted that the defects were cured prior to the filing of the instant lawsuit. However, Defendant's argument again relies upon the DPH reports attached to the RJN. Because the Court did not take judicial notice of the contents of the reports, Defendant's argument is unsupported. Because Defendant's argument is unsupported, the argument that the defects were cured is unpersuasive at this pleading stage.

The Demurrer to all COAs is OVERRULED.

Defendant argued that the sixth COA for IIED failed to allege sufficient and specific facts to plead extreme and outrageous conduct and intent. Defendant re-asserted that Plaintiff's fact allegations admitted that Defendant made attempts to cure the cockroach infestation[1]. (Compl. pars. 26, 54, 55, 57-59, 61-62, 65-66.) Issues as to whether extreme and outrageous conduct and intent were sufficiently alleged with specific facts are considered issues of fact and not proper for demurrer. (See *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1069 (Burnett).) However, Defendant's argument is grounded upon a narrow reading of the fact allegations. Defendant's argument only relies upon the allegations related to the cockroach infestation. Plaintiff expressly alleged that Defendant "refused" to repair water leaks and plumbing issues (Compl. pars. 92-94.) Plaintiff's allegation in support of the plumbing issues included a list of dates (i.e., April 19, 2023, through the present) when notice of the plumbing issues were provided to Defendant but no repairs were made. (Compl. pars. 77-91.) The alleged refusal to repair the plumbing issues is sufficient to plead extreme/outrageous conduct and intent because a refusal to repair is distinguishable from failed attempts to repair. The Court finds that the Complaint sufficiently pleads facts to support extreme/outrageous conduct and intent.

Defendant argued that Plaintiff failed to plead facts to support the severe emotional distress element. However, Plaintiff expressly alleged that Plaintiff suffered from "lack of sleep, great anxiety" and an "exacerbation of anxiety and depression". (Compl. pars. 121-122.) Plaintiff further alleged that the emotional distress was "ongoing". (Compl. pars. 25, 38-39.) The Court finds these allegations sufficient to support the pleading elements of IIED because the distress resulted in physical manifestation of illness and Plaintiff's distress occurred throughout the time when Plaintiff notified Defendant of the defects.

The demurrer to the sixth COA for IIED is **OVERRULED**.

Defendant argued that the eleventh COA for Civil Code section 789.3(a) violation failed to plead sufficient facts as to notice or any intent to terminate the lease. Plaintiff expressly alleged that notice of the defective heater was given in September 2025 but the defect was in effect for five years prior. (Compl. pars. 253-254.) However, Plaintiff expressly alleged that Defendant's response to the notice admitted that Defendant had knowledge of the defective heater for the past five years. (Compl. par. 254.) Defendant's argument to dispute proper notice is based upon a narrow reading of the allegations and thus unpersuasive.

Defendant asserted that Plaintiff failed to expressly allege that Defendant's misconduct was intended to terminate the lease. Plaintiff only alleged that Defendant's intent was "to avoid their legal and financial responsibilities as landlords." (Compl. par. 255.) The allegation as to intent failed to expressly plead an intent to terminate the lease. However, the intent to avoid "legal responsibilities" can be reasonably inferred to include the intent to terminate the lease because Defendant's "legal responsibility" includes a contractual duty to lease the premise. Avoidance of the duty to lease would necessarily mean a termination of the lease. The fact allegation, despite being unartfully plead, is sufficient to overcome the demurrer.

The Demurrer to the eleventh COA is **OVERRULED**.

Defendant moved to strike the request for punitive damages and argued that there are insufficient specific facts to plead malice, oppression or fraud. The Court noted that most of the COAs are either based upon negligence theory or contract. However, the IIED claim alleged a claim based upon intentional misconduct and can be grounds for punitive damages. Plaintiff expressly alleged a refusal to repair the plumbing issues which partially supports the IIED claim. The express allegation that Defendant refused repairs is sufficient to plead malice or, at minimum, a conscious disregard for Plaintiff's rights or safety.

Defendant also argued that the Complaint failed to allege corporate entity liability by failing to plead facts as to misconduct by an officer, director, or manager and/or facts as to advanced knowledge of the unfitness of an employee, or authorization, or ratification of the wrongful conduct. The allegations in the Complaint identified Sepehr Kamjoo, the property manager, as the person receiving Plaintiffs' notices regarding the defects. (Comp. par. 52 and *passim*.) However, Mr. Kamjoo is not identified as an officer, director, or managing agent. Without additional facts, Mr. Kamjoo's status as a "property manager" is insufficient to plead that a property manager would "exercise substantial independent authority and judgment in their corporate decision making so that their decisions ultimately determine corporate policy." Plaintiff asserted that Mr. Kamjoo had authority/discretion to determine whether to act on tenant's complaints and authorized remediation. However, the fact allegations in the Complaint do not plead any such facts. The only references to Mr. Kamjoo in the Complaint involve

allegations that Mr. Kamjoo was the contact person for Plaintiff's complaints. There are no facts to plead that Mr. Kamjoo held any authority over decisions to repair or not. Without additional facts as to Mr. Kamjoo being a managing agent, the request for punitive damages is insufficiently alleged.

The motion to strike punitive damages is GRANTED WITH LEAVE TO AMEND..

Defendant moved to strike the allegations related to the defective air conditioning because air conditioning is arguably not a condition of habitability included in any of the habitability statutes. (Civ. Code, secs. 1941, 1941.1, 1942, and 1942.4 and Health & Saf. Code sec. 17920.3.) The claims regarding statutory habitability are only made in the first and third COAs (i.e., Complaint pars. 127-139, 154-159). However, as argued by Plaintiff, the claims based upon the defective air conditioning are not limited to the statutory claims for habitability. The claim is included in the common law tort COAs for negligence, nuisance, IIED and the contract-based claims for breach of contract, breach of the covenant of quiet enjoyment, and breach of the covenant of good faith and fair dealing. Each of these COAs incorporated allegations related to the defective air conditioner. At most, Defendant's argument would only apply to the statutory-based claims for habitability (i.e., the first and third COAs). To the extent that the claims for the defective air conditioner are incorporated into the first and third COAs (i.e., Compl. pars. 127 and 154), the motion to strike the claim based upon the defective air conditioner is persuasive.

The motion to strike the claims for a defective air conditioner is GRANTED WITHOUT LEAVE TO AMEND as to the first and third causes of action and otherwise DENIED.

Defendant moves to strike Prayer paragraphs 7 and 8 as related to the arguments in the demurrer to the IIED COA and Civil Code section 789.3 violation COA. However, the Court overruled the demurrers to the two COAs and the Prayer for such damages are proper.

The motion to strike Prayer paragraphs 7 and 8 is DENIED.

Defendant moved to strike the allegation that the cockroach infestation remains unabated as of the filing of the action because the allegation is allegedly a false statement. However, Defendant's reliance upon the DPH report is unpersuasive at this pleading stage, as reviewed above. Defendant cannot show that the allegations are false and the motion to strike is unpersuasive.

The motion to strike the allegation that the cockroach infestation remains unabated is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.

[1] This argument again relied upon the DPH reports attached to the RJN. However, the Court did not consider the reports in this argument because the Court did not take judicial notice of the reports' contents.